Personal Auto Policy

Form LM-PA-01 (06/25) | Larkspur Mutual Insurance Company

Agreement

In return for payment of the premium and subject to all the terms of this policy, we agree with you as follows. This policy consists of this form, the Declarations, and any endorsements shown in the Declarations.

1 Definitions

1.1 "You" and "your" mean the named insured shown in the Declarations and the spouse of the named insured if a resident of the same household.

1.2 "We", "us" and "our" mean Larkspur Mutual Insurance Company.

1.3 "Family member" means a person related to you by blood, marriage or adoption who is a resident of your household.

1.4 "Your covered auto" means any vehicle shown in the Declarations; a vehicle you acquire during the policy period, if you ask us to insure it within 14 days; and a temporary substitute vehicle used while your covered auto is out of normal use because of breakdown, repair, servicing, loss or destruction.

1.5 "Occupying" means in, upon, getting in, on, out or off.

1.6 "Collision" means the upset of your covered auto or its impact with another vehicle or object. Contact with a bird or animal is not collision (see §D.2). Striking an object while swerving to avoid an animal is collision.

1.7 "Actual cash value" (ACV) means the cost to replace the vehicle with one of like kind and quality, less depreciation and adjusted for mileage and physical condition, determined as of the time of loss.

1.8 "Delivery or rideshare use" means use of a vehicle to carry persons or property for compensation or a fee, including food and grocery delivery, package delivery, and transportation network (rideshare) services, at any time while the driver is logged into a delivery or rideshare application, whether or not a request has been accepted. A share-the-expense car pool is not delivery or rideshare use.

1.9 "Bodily injury" means bodily harm, sickness or disease, including death that results. "Property damage" means physical injury to, destruction of, or loss of use of tangible property.

Part A - Liability Coverage

A.1 Insuring Agreement

We will pay damages for bodily injury or property damage for which any insured becomes legally responsible because of an auto accident. Property damage includes damage to fences, buildings, landscaping, vehicles and other property belonging to others. We will settle or defend, as we consider appropriate, any claim or suit asking for these damages. We have no duty to defend any suit or settle any claim for bodily injury or property damage not covered under this policy.

A.2 Insured

"Insured" as used in this Part means you or any family member for the ownership, maintenance or use of any auto, and any person using your covered auto with permission.

A.3 Supplementary Payments

In addition to our limit of liability, we will pay on behalf of an insured: up to $250 for the cost of bail bonds required because of an accident; premiums on appeal bonds; interest accruing after a judgment; up to $200 a day for loss of earnings because of attendance at hearings or trials at our request; and other reasonable expenses incurred at our request.

A.4 Exclusions

We do not provide Liability Coverage for any insured:

(1) Who intentionally causes bodily injury or property damage.

(2) For property damage to property owned or being transported by that insured.

(3) For that insured's liability arising out of the ownership or operation of a vehicle while it is being used for delivery or rideshare use (see §1.8). This exclusion does not apply if the Delivery and Rideshare Endorsement (LM-PA-RS) is shown in the Declarations.

(4) While using a vehicle in any organized racing or speed contest, or in practice or preparation for one.

(5) For bodily injury to an employee of that insured during the course of employment.

A.5 Limit of Liability

The limits shown in the Declarations for each person and each accident for bodily injury, and for each accident for property damage, are the most we will pay regardless of the number of insureds, claims made, vehicles involved, or vehicles shown in the Declarations.

Part B - Medical Payments Coverage

B.1 Insuring Agreement

We will pay reasonable expenses incurred for necessary medical and funeral services because of bodily injury caused by accident and sustained by an insured. We will pay only those expenses incurred for services rendered within 3 years from the date of the accident. "Insured" as used in this Part means you or any family member while occupying a motor vehicle, and any other person while occupying your covered auto. Payment under this Part does not depend on who was at fault.

B.2 Exclusions

We do not provide Medical Payments Coverage for any insured for bodily injury:

(1) Sustained while occupying your covered auto when it is being used for delivery or rideshare use, unless the Delivery and Rideshare Endorsement (LM-PA-RS) is shown in the Declarations.

(2) Sustained while occupying any vehicle located for use as a residence or premises.

(3) Occurring during the course of employment if workers' compensation benefits are required or available.

B.3 Limit of Liability

The limit shown in the Declarations for this coverage is the most we will pay for each injured person as the result of any one accident.

Part C - Uninsured Motorists Coverage

C.1 Insuring Agreement

We will pay compensatory damages which an insured is legally entitled to recover from the owner or operator of an uninsured motor vehicle because of bodily injury or property damage caused by an accident. A hit-and-run vehicle whose owner or operator cannot be identified is an uninsured motor

vehicle, provided the accident is reported to the police within 24 hours.

C.2 Property Damage Deductible

Property damage payable under this Part is subject to the uninsured motorist property damage deductible shown in the Declarations. When Collision coverage also applies to the same loss, we will not pay twice for the same damage.

Part D - Coverage for Damage to Your Auto

D.1 Insuring Agreement

We will pay for direct and accidental loss to your covered auto, including its equipment, minus any applicable deductible shown in the Declarations. If loss to more than one of your covered autos results from the same collision, only the highest applicable deductible will apply. We will pay for loss to your covered auto caused by:

(a) Collision, only if the Declarations indicate that Collision Coverage is provided for that auto.

(b) Other than collision, only if the Declarations indicate that Other Than Collision (Comprehensive) Coverage is provided for that auto.

D.2 Other Than Collision Losses

Loss caused by the following is considered other than collision: missiles or falling objects; fire; theft or larceny; explosion or earthquake; windstorm; hail, water or flood; malicious mischief or vandalism; riot or civil commotion; contact with bird or animal; or breakage of glass. If breakage of glass is caused by a collision, you may elect to have it considered a loss caused by collision.

D.3 Transportation Expenses

If Other Than Collision Coverage is shown for your covered auto, we will pay up to $20 per day, to a maximum of $600, for temporary transportation expenses incurred because of the total theft of your covered auto. Payment begins 48 hours after the theft is reported to us and ends when your covered auto is returned or we pay for its loss. If the Rental Reimbursement Endorsement (LM-PA-RR) is shown in the Declarations, that endorsement's limits apply instead.

D.4 Exclusions

We will not pay for:

(1) Loss to your covered auto which occurs while it is being used for delivery or rideshare use (see §1.8). This exclusion does not apply if the Delivery and Rideshare Endorsement (LM-PA-RS) is shown in the Declarations.

(2) Damage due and confined to wear and tear, freezing, mechanical or electrical breakdown or failure, or road damage to tires. This exclusion does not apply if the damage results from the total theft of your covered auto.

(3) Loss due to or as a consequence of the discharge of any nuclear weapon, war, insurrection, rebellion or revolution.

(4) Loss to any electronic equipment that is not permanently installed in your covered auto.

(5) Loss to your covered auto due to destruction or confiscation by governmental or civil authorities.

(6) Loss to your covered auto while it is being used in any organized racing or speed contest.

(7) Loss to custom furnishings or equipment in excess of $1,500 unless scheduled by endorsement.

(8) Loss caused intentionally by, or at the direction of, an insured.

D.5 Limit of Liability

Our limit of liability for loss will be the lesser of: (a) the actual cash value of the stolen or damaged property; or (b) the amount necessary to repair or replace the property with other property of like kind and quality. An adjustment for depreciation and physical condition will be made in determining actual cash value.

D.6 Total Loss

If the estimated cost to repair your covered auto equals or exceeds 75% of its actual cash value, we may declare the vehicle a total loss. We will pay the actual cash value less the applicable deductible. Payment will be made jointly to you and to any lienholder shown in the Declarations or known to us. The salvage becomes our property.

D.7 Theft Settlement

If your covered auto is stolen and is not recovered within 30 days after the theft is reported to us, we will settle the loss as a total loss under §D.6. If the vehicle is recovered before settlement, we will pay for the damage caused by the theft, subject to the deductible.

D.8 Payment of Loss

We may pay for loss in money or repair or replace the damaged or stolen property. We will pay a repair facility directly only with your written authorization. We may, at our expense, return any stolen property to you or to the address shown in the Declarations.

D.9 Appraisal

If we and you do not agree on the amount of loss, either may demand an appraisal of the loss. Each party will select a competent appraiser, and the two appraisers will select an umpire.

Part E - Duties After an Accident or Loss

E.1 We must be notified promptly of how, when and where the accident or loss happened. Notice should include the names and addresses of any injured persons and of any witnesses.

E.2 A person seeking any coverage must: (a) cooperate with us in the investigation, settlement or defense of any claim or suit; (b) promptly send us copies of any notices or legal papers received in connection with the accident or loss; (c) submit, at our expense and as often as we reasonably require, to physical exams by physicians we select; (d) authorize us to obtain medical reports and other pertinent records; and (e) submit a proof of loss when required by us.

E.3 A person seeking Coverage for Damage to Your Auto must also: (a) take reasonable steps after loss to protect your covered auto and its equipment from further loss; (b) promptly notify the police if your covered auto is stolen or is damaged by a hit-and-run driver; and (c) permit us to inspect and appraise the damaged property before its repair or disposal.

E.4 A person seeking Uninsured Motorists Coverage for an accident involving a hit-and-run vehicle must notify the police within 24 hours.

Part F - General Provisions

F.1 Policy Period and Territory

This policy applies only to accidents and losses which occur during the policy period shown in the Declarations and within the United States of America, its territories or possessions, Puerto Rico or Canada.

F.2 Cancellation

(a) You may cancel this policy by returning it to us or by giving us advance written notice of the date cancellation is to take effect.

(b) We may cancel by mailing notice to the named insured at the address shown in the Declarations: at least 10 days before the cancellation date if cancellation is for nonpayment of premium; or at least 20 days before the cancellation date in all other cases.

(c) Coverage ends at 12:01 a.m. on the cancellation date stated in the notice. No coverage is provided for any accident or loss that occurs after that time.

F.3 Reinstatement

If premium is received after the cancellation date, the policy is not reinstated unless we confirm reinstatement in writing. Any reinstatement we agree to will show a lapse in coverage, and no coverage applies to any accident or loss that occurs during the lapse. Premium received after the cancellation date that we do not accept for reinstatement will be refunded.

F.4 Fraud

We do not provide coverage for any insured who has made fraudulent statements or engaged in fraudulent conduct in connection with any accident or loss for which coverage is sought.

F.5 Our Right to Recover Payment

If we make a payment under this policy and the person to or for whom payment was made has a right to recover damages from another, we shall be subrogated to that right. That person shall do whatever is necessary to enable us to exercise our rights and shall do nothing after loss to prejudice them.

F.6 Two or More Auto Policies

If this policy and any other auto insurance policy issued to you by us apply to the same accident, the maximum limit of liability for your or a family member's injury shall not exceed the highest applicable limit of liability under any one policy.

Endorsement LM-PA-FG - Full Glass Coverage

For a covered auto for which Other Than Collision Coverage is shown in the Declarations, the Other Than Collision deductible does not apply to the repair or replacement of damaged glass, including the windshield, door glass, rear window glass and sunroof glass. Glass coverage includes the calibration of advanced driver-assistance system (ADAS) cameras and sensors required by the manufacturer after glass replacement. All other terms of the policy apply.

Endorsement LM-PA-RR - Rental Reimbursement

We will pay up to $40 per day, to a maximum of $1,200 per loss, for the cost of a rental vehicle while your covered auto is not drivable or is being repaired because of a loss covered under Part D. Coverage begins on the date of the loss (or, for total theft, the date the theft is reported to us) and ends on the earliest of: the date repairs are completed; the date we pay for a total loss; or 30 days. This endorsement replaces the transportation expense limits in §D.3.

Endorsement LM-PA-RS - Delivery and Rideshare

Exclusions A.4(3), B.2(1) and D.4(1) do not apply while your covered auto is being used for delivery or rideshare use, subject to the limits and deductibles shown in the Declarations. This endorsement applies only if it is shown in the Declarations and the additional premium has been paid.